



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 13 judgments on Tuesday 4 December 2018 and 63 judgments and / or decisions on Thursday 6 December 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 4 December 2018

[Magyar Jeti Zrt v. Hungary \(application no. 11257/16\)](#)

The applicant company, Magyar Jeti Zrt, is a private limited company registered under Hungarian law.

The company operates a popular news website called www.444.hu. In September 2013 the website published an article about an incident in the village of Konyár, near the border with Romania, in which a group of apparently drunk football supporters had stopped outside a school attended mainly by Roma students and had shouted racist remarks.

The article included a hyperlink to an interview placed on YouTube by a media outlet focusing on Roma issues, which had spoken with a Konyár Roma community leader and a parent. In the interview the community leader asserted that the football supporters were members of the Jobbik political party, stating: "Jobbik came in", and "They attacked the school, Jobbik attacked it".

In October Jobbik brought defamation proceedings against eight defendants, including the community leader, the outlet which interviewed him, the applicant company and other media firms.

In March 2014 the High Court found that the community leader's statements had been defamatory as he had falsely claimed that Jobbik was involved in the incident. The court also held that the applicant company and other media had "objective liability" (strict liability) as they had disseminated defamatory statements and it did not matter whether they had done that in good or bad faith.

The court order included a requirement for the applicant company to publish excerpts from the judgment on www.444.hu and to remove the hyperlink to the YouTube video from the article.

The judgment was upheld on appeal and the applicant company lodged a constitutional complaint and a petition for review with the *Kúria* (the Supreme Court), which were both rejected, the Constitutional Court decision coming in December 2017.

Relying on Article 10 (freedom of expression) of the European Convention on Human Rights, the applicant company complains that by finding it liable for posting a hyperlink on its website which led to defamatory content the domestic courts unduly restricted its rights.

[R.I. and Others v. Romania \(no. 57077/16\)](#)

The applicants, Ms R.I. and her two children, M.I. and I.I., are Romanian nationals who were born in 1975, 2006, and 2009 respectively. R.I. lives in Bucharest.

The case concerns the first applicant's complaint that the authorities have been ineffective in enforcing court orders to give her custody of her children.

The first applicant had a relationship with R., during which the second and third applicants were born. The relationship broke down in 2010 and the parents agreed that the children would live with the first applicant, their mother.

In October 2013 R. took the children away from the first applicant's home without her consent and they have been living with him since. The first applicant began court proceedings and was awarded custody under interim (May 2014) and final orders (September 2014). The father did not comply with the decisions and the first applicant involved court bailiffs, to no avail.

In August 2016 the father applied for custody and was initially successful, the first-instance court finding that the children had been separated from their mother for three years and that a sudden change in their residence would cause them distress. The first applicant appealed and the judgment was quashed in May 2018.

The appeal court found that it was not the first applicant's fault that the children were still living with their father and that she should not be penalised because of the failure to enforce the custody orders. The father had also been able to influence the children against the first applicant.

Relying on Article 3 (prohibition of torture and inhuman or degrading treatment) of the Convention, the first applicant complains on behalf of the second and third applicants that they have been subjected to abuse in the form of parental alienation by their father. Under Article 8 (right to respect for private and family life), she also complains that the authorities have failed to help her and her children enforce the custody orders and act efficiently over the psychological abuse the children have suffered at their father's hands.

[Isayeva v. Ukraine \(no. 35523/06\)](#)

The applicant, Natalya Isayeva, is a Ukrainian national who was born in 1974 and lives in Luhansk (Ukraine).

The case concerns Ms Isayeva's complaint that she was seriously hurt by another patient in a State-run mental institution in 1998.

She suffered grievous bodily harm following the attack, including concussion and a fractured jaw and nose. Her injuries later resulted in her going blind in one eye.

The prosecuting authorities decided in 1998 and 2013 not to institute or pursue criminal proceedings. They found in particular that the patient who had attacked Ms Isayeva could not be held criminally responsible and that, even though two of the asylum's orderlies had apparently been negligent by failing to supervise the patients, it was not possible to prosecute them under the relevant domestic law because they could not be considered as "officials".

Between 1999 and 2014 she did however obtain court decisions on two of her civil claims for compensation. The first set of proceedings terminated by a court decision finding that solely the asylum orderlies were at fault for the harm inflicted on her, while the second set of proceedings divided liability for the incident between the orderlies and the patient who had assaulted her.

She was awarded 74,130 Ukrainian hryvnias (approximately 8,000 euros at the time) in total in those proceedings.

In the meantime, in 2006, the prosecutor's office requested that the asylum conduct an internal investigation into the incident, but this demand has apparently never been complied with.

Ms Isayeva complains that the State failed to hold those responsible for the incident to account and that the length of the proceedings for damages was excessive. The Court will examine her complaints under Article 3 (prohibition of inhuman or degrading treatment) and Article 6 § 1 (right to a fair hearing within a reasonable time).

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Khanh v. Cyprus (no. 43639/12)

Kazlauskas and Nanartonis v. Lithuania (nos. 234/15 and 22357/15)

Michno v. Lithuania (no. 29826/15)

Stana v. Romania (no. 66640/12)

Asainov and Sibiryak v. Russia (nos. 16694/13 and 32701/13)

Lvin v. Russia (no. 43301/07)

Yandayeva and Others v. Russia (nos. 5374/07, 7651/08, 29910/08, 14688/09, 22253/11, 31280/11, 41884/11, 52051/11, 66830/11, and 851/12)

Dudka v. Ukraine (no. 55912/09)

Lavrinyuk v. Ukraine (no. 1858/08)

Yakushev v. Ukraine (no. 15978/09)

Thursday 6 December 2018

[Haziye v. Azerbaijan](#) (no. 19842/15)

The case concerns the arrest and detention of an award-winning Azerbaijani journalist.

The applicant, Seymur Mashgul oglu Haziye, is an Azerbaijani national who was born in 1982. He used to write for the newspaper *Azadliq* and was the presenter of a TV show, "Azerbaijani Hour", which was critical of the government, winning an international award in 2016 for his work.

He is currently serving a five-year prison sentence following his conviction of hooliganism.

His conviction was based on an incident which occurred on his way to work on 29 August 2014 when he alleges that a man assaulted him and he defended himself with a glass bottle. Both men were taken to the police station. The applicant was detained on suspicion of hooliganism and brought before a judge the next day. The judge ordered his detention pending trial for two months on the grounds that he risked reoffending and obstructing the investigation.

The courts, repeating the same grounds, dismissed his appeal against this decision and three subsequent applications to be released on bail or put under house arrest. The courts dismissed the last of these applications on 11 November 2014, finding his continued detention lawful.

The courts later decided at a preliminary hearing that the preventive measure of remand in custody should remain unchanged. This decision constituted the legal basis for his continued detention until his conviction on 29 January 2015.

Relying on Article 5 § 1 (right to liberty and security), the applicant complains that his detention from 29 October 2014 (when the first order to detain him expired) to 11 November 2014 was unlawful. Further relying on Article 5 § 3 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial), the applicant also complains that the domestic courts failed to justify his detention pending trial. Lastly, in response to a question posed by the Court in relation to Article 18 (limitation on use of restrictions on rights) in conjunction with Article 5, Mr Haziye argues that his rights were restricted for purposes other than those prescribed in the Convention.

[Słomka v. Poland](#) (no. 68924/12)

The applicant, Adam Słomka, is a Polish national who was born in 1964 and lives in Katowice (Poland).

The case concerns his being given a custodial sentence for contempt of court.

Mr Słomka is a former opposition activist who was imprisoned by the communist authorities in 1982.

He was in court when on 12 January 2012 the trial judges were to deliver their judgment in the case of three high-ranking members of the Military Council of National Salvation, which imposed martial law in 1981.

After the judges had arrived in the courtroom, Mr Słomka jumped behind the judges' table and shouted "This is a mockery of justice!" Some other members of the public also shouted similar slogans. The judges left the courtroom. Mr Słomka was removed, but returned later and continued shouting out statements in the same vein.

The presiding judge decided to read the verdict out in a neighbouring room. Later that day Mr Słomka was sentenced in his absence to 14-days' imprisonment for contempt of court. He was arrested and taken to the Warsaw Remand Centre several days later.

He lodged an interlocutory appeal, arguing, among other things, that he had not disturbed the court so much as to warrant such a penalty. His appeal was dismissed in March 2012, after he had served his 14-day sentence. The appeal court's findings included the argument that his disrespectful behaviour had interfered with the solemn nature of court proceedings and the court's dignity and had disrupted the proceedings.

Relying on 6 §§ 1 and 3 (a), (b) and (c) (right to a fair trial / right to be informed promptly of the accusation / right to adequate time and facilities for preparation of defence / right to legal assistance of own choosing), he complains, among other things, of the unfairness of the proceedings leading to the custodial penalty owing to a lack of impartiality on the part of judges as they were the ones who were offended and who imposed the penalty. He also alleges a lack of equality of arms and a lack of objectivity on the part of the court. In addition, he complains that the penalty was carried out before his interlocutory appeal had been examined by the appellate court.

Under Article 10 (freedom of expression), he complains of the disproportionate severity of the punishment.

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Mammadov v. Azerbaijan (no. 8023/11)

Delin v. Bulgaria (no. 62377/16)

Dimitrov v. Bulgaria (no. 69725/10)

Damaskinou-Ikonomidou v. Greece (no. 67966/12)

G.T. v. Greece (no. 75570/11)

Roussis v. Greece (no. 75140/12)

Sharkar v. Greece (no. 15641/12)

Tsorbatzikostis v. Greece (no. 47767/12)

Garbacz and Others v. Hungary (nos. 22934/13, 50548/14, 60740/16, 32367/17, 36518/17, 41003/17, 71384/17, and 81394/17)

Klamancsek and Others v. Hungary (nos. 2264/16, 2383/16, 6399/16, 7071/16, 11258/16, 23098/16, 66426/16, 13957/17, 52718/17, and 66092/17)

Munkácsi and Others v. Hungary (nos. 69002/13, 73706/13, 51058/14, 60471/14, 39575/15, 40018/15, 47938/15, 50439/15, 52796/15, 53793/15, and 58265/15)

A.M.A. Azienda Marina Averno S.r.l. v. Italy (no. 47918/11)

Gambacorta and Others v. Italy (nos. 52739/12, 52740/12, 52741/12, 52743/12, 52745/12, 52746/12, 79349/12, 10071/13, 24265/13, 24313/13, and 26358/13)
Morosina S.p.a. v. Italy (no. 46342/11)
Morosina S.p.a. v. Italy (no. 46349/11)
Rolla and Others v. Italy (no. 22172/07 and 34 other applications)
Sair S.r.l. v. Italy (no. 46659/16)
Violante and Others v. Italy (nos. 25780/13, 26451/13, 28614/13, 29277/13, 51369/13, 51422/13, 57806/13, 58339/13, 77808/13, 1827/14, and 18496/14)
Gaska v. Lithuania (no. 38686/16)
Zaloilo v. the Netherlands (no. 23179/12)
Bukowski and Others v. Poland (no. 47395/09)
Czajkowska v. Poland (no. 2062/14)
Glazer v. Poland (no. 36087/15)
Lenart v. Poland (no. 1855/14)
Mazur v. Poland (no. 49864/15)
Michalski v. Poland (no. 78851/16)
Ryba v. Poland (no. 77501/16)
Stefaniak v. Poland (no. 79456/17)
Szczęsny v. Poland (no. 60537/16)
Da Cunha Folhadela Moreira v. Portugal (no. 71418/14)
De Melo Champalimaud v. Portugal (no. 77494/17)
Bejgu v. Romania (no. 24704/16)
Casandra v. Romania (no. 36066/12)
Cătănciu v. Romania (no. 22717/17)
The Catholic Archdiocese of Bucharest v. Romania (no. 3524/10)
Creață and Others v. Romania (nos. 33635/16, 35374/16, and 70395/16)
Hoca and Others v. Romania (no. 56621/14 and 20 other applications)
Luca and Others v. Romania (no. 37792/04)
Luminița Stanciu v. Romania (no. 19052/11)
Marin v. Romania (no. 36606/16)
Musagić v. Romania (no. 12038/16)
Mustafa v. Romania (no. 12193/16)
Năsăud Greek Catholic Parish United to Rome v. Romania (no. 46679/13)
Neagu v. Romania (no. 66952/12)
Nicolau v. Romania (no. 8693/06)
Sandor and Others v. Romania (nos. 38145/15, 43853/15, 51057/15, 13721/16, 15660/16, 19333/16, 19898/16, 21777/16, 24400/16, 38501/16, 45928/16, and 49455/16)
Sotir v. Romania (no. 68304/13)
Stancu v. Romania (no. 16866/16)
Lobanov v. Russia (no. 52936/15)
Marchenko v. Russia (no. 38784/11)
Shevtsova v. Russia (no. 51740/07)
Sözler Neşriyat Ticaret ve Sanayi Anonim Şirketi v. Russia (no. 21115/13)
Trunk v. Slovenia (no. 60503/15)
Radovik v. “the former Yugoslav Republic of Macedonia” (no. 11640/16)
İrtem v. Turkey (no. 35928/15)
Chirok and Others v. Ukraine (nos. 3309/15, 29721/15, 29723/15, 29727/15, 29728/15, 29729/15, 29730/15, 29731/15, 29744/15, and 32482/15)
Drakin v. Ukraine (no. 24237/10)
Omelchenko v. Ukraine (no. 45965/08)
Shvirid v. Ukraine (no. 56949/11)

Subeliani v. Ukraine (no. 39392/17)

Times Newspapers Limited and Kennedy v. the United Kingdom (no. 64367/14)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.